

Court No. - 3

Case :- WRIT - C No. - 4649 of 2022

Petitioner :- Fazil Husain

Respondent :- The Managing Director And 3 Others

Counsel for Petitioner :- Ashutosh

Counsel for Respondent :- C.S.C.,Rajesh Yadav

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Jayant Banerji,J.

Heard Shri Ashutosh, learned counsel for the petitioner, learned standing counsel for the State respondents no. 3 and 4 and Shri Rajesh Yadav, learned counsel for the respondents no. 1 and 2.

This writ petition has been filed praying for the following relief:

"(I) Issue, a writ of certiorari quashing the recovery citation dated 04.01.2021 issued by the respondent no. 02 against the petitioner regarding consumption of the electricity dues amount Rs.01,44,028/-. (Annexure No.-01 to the writ petition).

(II) Issue a writ, order, or direction in the nature of mandamus directing the respondents to decide the representation of the petitioner dated 21.10.2021 regarding the recovery citation issued against the petitioner.

(III) Issue a writ in the nature of mandamus directing the respondents not to adopt any coercive measures in pursuance of the aforesaid recovery citation."

Shri Rajesh Yadav, learned counsel for the respondents no. 1 and 2/Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, this writ petition is **disposed off** giving liberty to the petitioner to submit his objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 before the respondent No. 2 within four weeks from today along with a certified copy of this order. In the even such an objection is submitted within the stipulated period, it shall be decided by the respondent no. 2 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 31.5.2022

o.k.